



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
41 U.S.C. 3304

J&A-25-0019

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) in accordance with the requirements of FAR 6.303-1. The justification for the use of the statutory authority under FAR Subpart 6.3 is based on the following facts and rationale required under FAR 6.303-2 as follows:

1. Agency and Contracting Activity.

The Department of Homeland Security, U.S. Immigration and Customs Enforcement, Office of Acquisition Management, proposes to enter into a contract on behalf of Homeland Security Investigations (HSI) Cyber and Operational Technology Division, Technical Operations Unit on a basis of other than full and open competition.

2. Nature and/or description of the action being approved.

(a) Type of action: Firm-Fixed-Price Contract

(b) Amount of the current J&A: \$24,930,140.00

(c) Brief Description: OAQ intends to procure, on a sole source basis, [REDACTED] system and software licenses to preserve [REDACTED]
[REDACTED]

JSI Telecom, Inc.
15004 Northridge Drive, Suite 100
Chantilly, VA 20151

3. Description of Supplies/Services.

This requirement is to provide software licenses and hardware, support services, and training for the HSI Title III Digital Collection System at an estimated total cost of \$24,930,140. These services are required to [REDACTED].

Period	Time	Total
Base	12 mos.	[REDACTED]
Option Year 1	12 mos.	
Option Year 2	12 mos.	
Option Year 3	12 mos.	
Option Year 4	12 mos.	
FAR 52.217-8	6 mos.	



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
41 U.S.C. 3304

4. Identification of statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. §3304 as implemented by:

- ☒ FAR Subsection 6.302-1: Only one responsible source and no other supplies or services will satisfy agency requirements.
- ☐ 6.302-2: Unusual and compelling urgency.
- ☐ 6.302-3: Industrial mobilization; engineering, development, or research capability; or expert services.
- ☐ 6.302-4: International agreement.
- ☐ 6.302-5: Authorized or required by statute.
- ☐ 6.302-6: National security.
- ☐ 6.302-7: Public interest.

5. Demonstration that the nature of the acquisition requires use of the authority cited.

JSI Telecom is the only vendor capable of meeting the highly specific operational, legal, and security requirements of [REDACTED]. HSI Cyber and Operational Technology Division, Technical Operations Unit currently utilizes a [REDACTED]

JSI Telecom exclusively provides its [REDACTED] [REDACTED] directly through its headquarters, with no authorized resellers or distributors. Given the critical nature of [REDACTED] and the system's role in maintaining uninterrupted, [REDACTED], JSI Telecom is the only viable choice and no other supplies or services will satisfy agency requirements.

Market research thoroughly evaluated [REDACTED]



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
41 U.S.C. 3304

[REDACTED]

[REDACTED]

Thus, the unique circumstances of this acquisition, as verified through extensive market research, necessitate the use of the cited authority to procure directly from JSI Telecom.

[REDACTED]

6. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable.

☒ OAQ intends to publicize this requirement, **prior to award**, as required by subpart 5.2 by posting a notice on sam.gov in December 2024.

A notice of intent to sole source was posted on Sam.gov on 12/12/2024. The notice will be available for 15 days to see if any potential vendors could offer similar services and closed on 12/27/2024. Vendors were able to submit a capabilities statement in response to the Sam.gov posting.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer determines that the anticipated price will be fair and reasonable based on market research conducted and analysis of pricing data received from JSI Telecom. The CO will use price analysis techniques as provided under FAR part 15.404-1(b). The CO plans to request commercial pricing data from similar services provided to the industry and from historical prices paid by the government and law enforcement customers to determine a fair and reasonable price.



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
41 U.S.C. 3304

8. Description of market research.

Market research was conducted between January 2024 and November 2024, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

JSI Telecom emerged as the only company capable of meeting all operational and compliance requirements. [REDACTED]

[REDACTED]

JSI Telecom is categorized as a small business entity and exclusively provides its software products and related services, [REDACTED]

[REDACTED] JSI does not employ agents, dealers, or distributors; its software is only available directly through its headquarters in Chantilly, Virginia. [REDACTED]

[REDACTED]

Based on these findings, JSI Telecom is the only vendor that can fully satisfy the operational, legal, and security requirements [REDACTED].

9. Any other facts supporting the use of other than full and open competition.

None.



**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
41 U.S.C. 3304**

10. A listing of the sources, if any that expressed, in writing, an interest in the acquisition.

None. A notice of intent to sole source was posted on Sam.gov and no parties submitted a response.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for supplies or services required.

The resulting contract will include option periods and OAQ will continue to monitor the marketplace throughout contract performance to see whether the marketplace has changed such that competition may be merited.

☒ **After award** of this action, DHS intends to post the approved/signed justification pursuant to 6.305.

☐ **After award** of this action, DHS does not intend to post the approved/signed justification in accordance with 6.305(f).



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
41 U.S.C. 3304

12. Contracting Officer's Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

[Redacted signature]

[Redacted date]
Date

13. Technical/Requirements Personnel Certification.

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

[Redacted signature]

[Redacted date]
Date

[Redacted text]

[Redacted signature]

[Redacted date]